

Great Creations

INTELLECTUAL PROPERTY TERMS

Last revised April 2026. Binding upon all Clients from the date of account creation.

These terms define who owns what throughout the creative process. By engaging Great Creations and its subsidiary Great Creation Studios (collectively, "Great Creations") services, the Client agrees to these intellectual property terms in their entirety.

1. Great Creations Owns the Work Until Paid

All creative work produced by Great Creations, including but not limited to logos, brand identities, illustrations, graphics, layouts, photography, video, animation, code, copy, and any other deliverables, remains the exclusive intellectual property of Great Creations from the moment of creation until the Client has made full payment for the applicable project. No rights of any kind transfer to the Client until full payment is received. This applies regardless of whether the Client provided direction, feedback, or source materials that informed the work.

Non-payment means no rights. If a project is cancelled or payment is not completed, the Client has no right to use, reproduce, display, modify, or distribute any work produced by Great Creations for that project, including proofs and work-in-progress shared through the Client Portal.

2. What the Client Gets Upon Full Payment

Upon receipt of complete payment, Great Creations grants the Client a perpetual, non-exclusive, worldwide licence to use the final approved deliverables for the purposes discussed during the project. This licence includes the right to use the deliverables in the Client's business operations, marketing, and communications, reproduce the deliverables in print and digital formats, and display the deliverables publicly in connection with the Client's brand or business.

3. What the Client Does Not Get

The licence granted does not include the right to:

- Resell, sublicense, lease, or distribute the deliverables as standalone products, templates, stock assets, or design resources;
- Claim sole authorship or file intellectual property registrations (trademarks, copyrights, patents) on the deliverables without Great Creations' prior written consent;
- Use the deliverables to create derivative works for resale;
- Transfer the licence to a third party without Great Creations' written consent (business acquisitions may be excepted on a case-by-case basis);
- Use preliminary concepts, rejected directions, or unused drafts — these remain Great Creations' property regardless of payment.

4. Portfolio Rights

Great Creations retains the permanent, non-revocable right to display, reference, and promote all completed work in its portfolio, website, social media, case studies, award submissions, pitch decks, and marketing materials. This right survives termination of the business relationship. If the Client requires portfolio exclusion for a specific project, this must be agreed in writing before work begins and may involve an additional fee.

5. Source Files

Source files (such as PSD, AI, INDD, Figma, Sketch, or development source code) are not included in the standard licence unless explicitly agreed before the project begins. If source files are included, Great Creations provides them as-is with no obligation to provide training, support, or documentation. The Client assumes full responsibility for the maintenance and modification of source files after delivery.

6. Client-Provided Materials

The Client retains ownership of all materials provided to Great Creations. By providing these materials, the Client grants Great Creations a temporary, non-exclusive licence to use them solely for performing the agreed services. The Client warrants that all provided materials are owned by the Client or properly licensed, that Great Creations' use will not infringe any third-party rights, and that the Client has the legal authority to grant this licence. The Client agrees to

indemnify, defend, and hold harmless Great Creations from any claims, damages, losses, costs, and expenses arising from Client-provided materials that infringe third-party rights.

7. Third-Party Assets

Where Great Creations incorporates third-party assets into deliverables (such as stock photography, licensed fonts, or open-source components), those assets remain subject to their original licences. Great Creations will inform the Client of any third-party licence requirements. The Client is responsible for complying with those licences. Great Creations is not liable for the Client's failure to comply with third-party licence terms.

8. Moral Rights

Under the Canadian Copyright Act, Great Creations and its creators retain moral rights in the work, including the right of attribution and the right to the integrity of the work. Great Creations will not unreasonably exercise moral rights in a way that interferes with the Client's legitimate use of the deliverables. Great Creations reserves the right to be credited as the creator of the work where appropriate.

9. Infringement

Great Creations warrants that all work it creates is original and does not knowingly infringe the intellectual property rights of any third party. If a legitimate infringement claim arises from work created by Great Creations (not from Client-provided materials), Great Creations will, at its option: modify the deliverable to resolve the infringement, replace the deliverable with a non-infringing alternative, or refund the fees paid for the infringing deliverable. This is the Client's sole remedy for infringement claims related to Great Creations-created work.

10. Enforcement

If the Client uses Great Creations' work without authorization (including using work from cancelled or unpaid projects), Great Creations reserves the right to pursue all available legal remedies under Canadian law, including injunctive relief, statutory and actual damages under the Copyright Act (R.S.C., 1985, c. C-42), and recovery of legal costs. Any proceedings shall be conducted in the courts of the province of Great Creations' principal place of business.

International Clients consent to Canadian jurisdiction by engaging Great Creations' services.